Office of Information Technology Services

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New York State Information Technology Policy	**No**: NYS-P24-001
IT Policy: **Acceptable Use of Artificial Intelligence Technologies**	**Updated**: 6/24/2026
	Issued By: NYS Office of Information Technology Services **Owner**: Chief AI Office

1.0 Purpose and Benefits

The purpose of this policy is to establish guidelines for the acceptable use of Artificial Intelligence (AI) technologies, as defined here within, by State Agencies (SA). Through the responsible use of AI, SAs can drive innovation, increase operational efficiencies, and better serve New Yorkers while protecting privacy, managing risk, and promoting accountability, safety, and equity. Agencies are encouraged to responsibly adopt AI technologies and should consider this policy a tool to aid in that adoption.

2.0 Authority

Section *103(10) of the State Technology Law* provides the Office of Information Technology Services (ITS) with the authority to establish statewide technology policies, including technology and security standards.. Details regarding this authority can be found in NYS ITS Policy, *NYS-P08-002 Authority to Establish State Enterprise Information Technology (IT) Policy, Standards and Guidelines*.

3.0 Scope

3.1 Agencies

This policy applies to "State Agencies" as defined in Section 101 of the State Technology Law. This includes employees and all third parties (such as local governments, consultants, vendors, and contractors) that use or access any Information Technology (IT) Resource for which the SA or ITS has administrative responsibility, including systems managed or hosted by third parties on behalf of the SA or ITS. While an SA may adopt a different policy, it must include the requirements set forth in this one. Where a conflict exists between this policy and an SA's policy, the more restrictive policy will take precedence.

Non-SAs, including authorities, boards, and other New York State governmental organizations are encouraged to consider this policy in their use and adoption of AI.

3.2 Definitions and Covered Use

This policy applies to all technology systems that deploy AI technology, hereafter referred to as "AI systems." For the purposes of this policy, AI is defined as a machine- based system that can, for a given set of human-defined objectives, make predictions, recommendations, or decisions influencing real or virtual environments that, when used, may "directly impact the public." AI systems use machine- and human-based inputs to perceive real and virtual environments; abstract such perceptions into models through analysis in an automated manner; and use model inference to formulate options for information or action.

The definition includes but is not limited to systems that use machine learning, large language model, natural language processing, and computer vision technologies, including generative AI. The definition does not include basic calculations, basic automation, or pre-recorded rule-based conditional logic response systems with predefined triggers that automatically initiate predetermined actions, such as "if this then that (IFTT)" systems.

This policy applies to all new and existing AI systems that are developed, used or procured by SAs, that when used could directly impact the public.[1]

[1] "Directly impact the public" shall mean when the use of an AI system would control, have a material impact on, or meaningfully influence the outcome of activities that impact the safety, welfare, or rights of the public. Examples of such activities include but are not limited to assessments or decisions about individuals including in law enforcement, housing, hiring and employment, financial, educational, or healthcare contexts, decisions regarding access to or eligibility for government benefits or about child welfare, or the functioning of emergency services or critical infrastructure.

The policy does not govern SA's regulatory or other actions regarding non-agency uses of AI.

4.0 Information Statement

4.1 Use of AI

SAs may use AI systems to further their mission and meet critical business needs. The use of AI, even if not subject to this policy, must be in compliance with applicable New York State and ITS policies and standards and New York and federal law including, but not limited, to NYS-P14-001: Acceptable Use of Information Technology Resources. Particular attention should be made to the use of Open-Source AI to ensure compliance with ITS-P19-005: Acceptable Use of Open Source Software, where applicable. Additionally, SAs must maintain awareness of how the AI system may use personally identifiable, confidential, or sensitive information to ensure such use complies with applicable laws, rules, regulations, notices, and policies. SAs are required to have SA leadership approval prior to adopting new AI systems. Such approval should include SA executive, legal, and operational leadership.

The SA must identify an Information Owner for each AI system that meets the criteria set forth in Section 3.2. The Information Owner is responsible for understanding and implementing this policy for each AI system in use.

4.2 Elements for AI System Use

The use of AI can present novel risks and challenges, compared to previous technologies. SAs and their respective Information Owners must be aware of these risks, and ensure that AI usage maximizes benefits and minimizes harms. Below is a list of elements for the adoption of AI systems.

4.2.1 Human Oversight

AI systems aid and enhance human decision making that may impact the public. SAs must ensure that decisions that impact the public are not made without oversight by appropriate staff, who make the final decisions. Furthermore, SA users of AI systems must provide meaningful oversight over all decisions made by an AI system and be able to explain the decision or output. Automated final decision systems are not permitted.

SAs must take steps to ensure that where AI systems are used to aid in decision making that impacts the public, the outcomes, decisions, and supporting methodologies of such AI systems are documented appropriately.[2] The Information

[2] For more information on this topic, please consult the National Institute of Standards and Technology (NIST) AI Risk Management Framework (RMF), available at https://www.nist.gov/itl/ai-risk-management-framework.

Owner is responsible for periodically assessing the outputs of their in-production AI systems to validate continuing reliability, safety, and fairness.

4.2.2 Fairness and Equity

Use of AI systems must be fair and equitable in accordance with applicable State and Federal laws, rules, and regulations. SA must be aware that systemic, computational, and human biases may impact AI systems and should develop a plan to monitor for such biases, and, where identified, remediate identified biases.

4.2.3 Transparency

Transparency is an important principle of AI governance. Where members of the public commence direct interaction with SA systems that use AI technology, the use of such AI technology should be disclosed by the SA.[3] SAs may not need to disclose such use if disclosure would otherwise be exempt under Articles 6 and 6-A of the Public Officers law, including but not limited to, if it is deemed that disclosure of the information would jeopardize the capacity to guarantee the security of information technology assets, would interfere with a law enforcement investigation or reveal criminal investigative techniques or procedures, or would endanger the life or safety of a person.

Any public facing, wholly AI-generated content (e.g., images, videos, documents etc.) must contain a disclaimer that the content is AI generated. SA's should consider a disclaimer for items produced that otherwise contain AI-generated content. Examples of potential AI disclaimers include, but are not limited to the following:

- "This [*image/video/etc.*] was created with the assistance of artificial intelligence. AI-generated content may contain errors, so please verify any critical information."
- "AI tools were used in the creation of this [*image/video/etc.*] Human oversight was also involved." (If applicable)
- "This [*image/video/etc.*] is AI-generated. Please be aware that it may not perfectly represent reality."
- "I'm an AI assistant here to answer questions. Please be aware that I may make mistakes. For critical issues, please reach out to our service contact."
- "AI assistance was used to generate the responses provided. AI-generated content may contain errors, so please verify any critical information."

[3] For example, if an SA is using an AI-enabled chatbot to answer questions from members of the public, the user should be made aware that they are interacting with a machine rather than with a human.

4.2.4 Privacy

SAs must develop controls to ensure the appropriate use of all AI systems (e.g., open-source AI systems, publicly available AI systems), particularly in the limited circumstances when the SA identifies a need to use the AI system to process personally identifiable, confidential, or sensitive information. Examples may include:

- A privacy impact assessment;
- Privacy-oriented settings, including data minimization, such as only processing data that is necessary during the development and use the AI system;
- Data retention settings that follow the requirements of federal and state standards;
- Ensuring the accuracy of data put into the AI system and the AI system's outputs;

Disposal of the data once the purpose of using the data has been fulfilled, when possible, in compliance with applicable state and federal laws; or

Providing data subjects with control and transparency in relation to data processing.

4.2.5 Security

AI systems must comply with NYS-P03-002: Information Security Policy, and all associated standards which can be found at https://its.ny.gov/policies. Any additional controls required by applicable Federal or State law, rule, or regulation (e.g., IRS Publication 1075) must also be incorporated. AI systems must be developed and reviewed in alignment with NYS-S13-001: Secure Systems Development Lifecycle. In addition, SAs must ensure there are adequate security controls including encryption and pseudonymization, where appropriate, depending on the SAs risk assessment throughout the data lifecycle.

4.2.6 Technology

The commercial and open-source landscape of AI is rapidly evolving, and SAs should take steps to periodically ensure that their AI systems continue to meet their business requirements in light of this. Open standards, model lifecycle management, and regular retraining of AI systems are all important elements that SAs should consider.

ITS supported agencies must engage their ITS dedicated team using established procedures (such as a work intake or consultation request) when considering the use of an AI system, and abide by the NYS-P08-001: Plan to Procure for any

potential AI-related procurements. Following these processes will result in appropriate ITS reviews and approvals.

4.2.7 Intellectual Property

The legal landscape regarding intellectual property protections of AI systems and their outputs is evolving. SAs must confer with their counsel's office regarding the intellectual property implications of using AI systems, including for example, using copyrighted materials as inputs into an AI system or the extent to which a work created by an AI system may contain copyrighted elements.[4]

4.3 AI Risk Assessment and Management

AI Risk Management is a process whereby SAs implement governance structures to continually identify, measure, and manage their AI risks. SAs must implement AI Risk Management into their use of AI systems, building off of the requirements set forth in NYS-S14-001: Information Security Risk Management which requires SAs to implement mechanisms to monitor the risk management process (e.g., establish and track approved risk assessment methodologies, risk responses, or create risk management procedures) and regularly review performance, at least annually.

At least annually, or if a material change is made to an AI system, SAs must perform an AI Risk Assessment for each AI system that meets the criteria set forth in Section 3.2. This includes all AI systems already deployed by an SA, as well as for all AI systems procured by SAs in the future. To conduct an AI Risk Assessment, SAs should identify the key stakeholders, and then evaluate human oversight, fairness/equity, transparency, privacy, security, legal, and other risks.

In addition, because AI systems are still information systems, SAs must continue to perform the Information Security Risk Assessment following the requirements set forth in NYS-S14-001: Information Security Risk Management. SAs should also refer to the NYS-S14-002: Information Classification Standard for guidance on how to rate information risks as part of an AI Risk Assessment.

ITS will continue to publish guidance to help SAs refine their AI Risk Management. SAs are encouraged to review the National Institute of Standards and Technology (NIST) AI 100-1 Artificial Intelligence Risk Management Framework (RMF) and accompanying NIST Artificial Intelligence Risk Management Framework Playbook.

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[4] For additional guidance see generally: https://www.federalregister.gov/documents/2023/03/16/2023-05321/copyright-registration-guidance-works-containing-material-generated-by-artificial-intelligence

4.4 AI Inventory

ITS maintains an inventory that identifies AI systems in use by SAs, as such term is defined in section 103-e of the State Technology Law (STL).

ITS shall make such inventory publicly available to the extent practicable. ITS may withhold certain information from the AI system inventory collection pursuant to Article 6 or 6-A of the Public Officers law, including but not limited to, if it is deemed that disclosure of the information would jeopardize the capacity to guarantee the security of information technology assets, would interfere with a law enforcement investigation or reveal criminal investigative techniques or procedures, or would endanger the life or safety of a person.

ITS issued guidance to SAs on the manner and composition of information to be furnished to ITS under this section, NYS-G25-001: AI Inventory Guidance. SAs are required to periodically report the implementation of new AI systems to ITS.

5.0 Compliance

This policy shall take effect upon publication. Compliance is required with all enterprise policies and standards. ITS may amend its policies and standards at any time; compliance with amended policies and standards is required.

If compliance with this policy is not feasible or technically possible, or if deviation from this policy is necessary to support a business function, SAs must request an exception from ITS.

6.0 Definitions of Key Terms

Except for terms defined in this policy, all terms shall have the meanings found in the ITS Glossary.

AI Inventory: The centralized record of all AI systems developed, procured, or deployed by an agency.

7.0 Contact Information

Submit all inquiries and requests for future enhancements to the policy owner at:

Chief Artificial Intelligence Office
Reference: NYS-P24-001
NYS Office of Information Technology Services
State Capitol, ESP, P.O. Box 2062
Albany, NY 12220
Email: its.sm.caio.ai@its.ny.gov

Statewide technology policies, standards, and guidelines may be found at the following website: https://its.ny.gov/policies

8.0 Revision History

This policy should be reviewed consistent with the requirements set forth in ITS-P24-003 Process for Establishing Information Technology Policies, Standards, and Guidelines.

Date	Description of Change	Reviewer
01/08/2024	Issued policy	Chief Data Office
03/11/2025	Updated policy	Chief Data Office
06/24/2026	Updated policy including changes to scope, transparency requirements, risk assessment and management, and AI inventory requirements	Chief Artificial Intelligence Office